

NOTICE OF LODGMENT
AUSTRALIAN COMPETITION TRIBUNAL

This document was lodged electronically in the AUSTRALIAN COMPETITION TRIBUNAL and has been accepted for lodgment pursuant to the Practice Direction dated 13 July 2026. Filing details follow and important additional information about these are set out below.

Lodgment and Details

Document Lodged:	Submissions
File Number:	ACT 1 of 2026
File Title:	APPLICATION BY COLES SUPERMARKETS AUSTRALIA PTY LTD
Registry:	VICTORIA – AUSTRALIAN COMPETITION TRIBUNAL



REGISTRAR

Dated: 29/09/2026 2:48 PM

Important information

This Notice has been inserted as the first page of the document which has been accepted for electronic filing. It is now taken to be part of that document for the purposes of the proceeding in the Tribunal and contains important information for all parties to that proceeding. It must be included in the document served on each of those parties.

IN THE AUSTRALIAN COMPETITION TRIBUNAL
APPLICATION BY COLES SUPERMARKETS AUSTRALIA PTY LTD
ACT 1 OF 2026

This document contains confidential information which is indicated as follows:

1. [Confidential and governed by the Confidentiality Regime made by Justice O'Bryan made on 21 July 2026]
2. [Highly Confidential and governed by the directions of Justice O'Bryan made on 10 August 2026, where ALDI Stores (A Limited Partnership) is not the Confidentiality Claimant]

**COLES' WRITTEN SUBMISSIONS ON THE PROVISION TO THE TRIBUNAL OF
CORRECTIONS TO SECTION 155 NOTICE RESPONSES**

- 1 With the consent of the ACCC and the intervenor, Coles seeks to file and serve the affidavit of Saurav Sachdev (Head of Technology – Data and AI Platform at Coles Supermarkets) affirmed 11 September 2026 to correct data errors identified in its responses to two items in the notice issued by the ACCC under s 155(1)(a) of the *Competition and Consumer Act 2010 (CCA)* on 12 February 2026 (01068.001.015.0330) (the **Notice**). These responses are referenced and relied upon in the ACCC's Statement of Reasons dated 1 July 2026 (**SOR**) or are relevant to matters in Coles' Statement of Facts, Issues and Contentions filed on 14 August 2026 (**SOFIC**).
- 2 The responses affected by the data errors are: (i) a spreadsheet containing total revenue generated (excl GST), total number of transactions, and average number of items per transaction at Coles Kalgoorlie for each month between July 2024 and January 2026 (being the response to Schedule 1, **Item 3** of the Notice (01068.001.001.0018));¹ and (ii) a spreadsheet identifying the 2,000 SKUs which generated the highest total revenue for the 2024-25 financial year at Coles Kalgoorlie (being the response to Schedule 1, **Item 4** of the Notice (01068.001.001.0019)).²
- 3 The errors include: the double deduction of GST (which has resulted in understating Coles' revenue in Item 3 and thereby affecting the products identified in the top 2,000 SKUs in Item 4); the selection of data from [REDACTED] [REDACTED] (resulting in the incorrect calculation of revenue and average number of items purchased in Item 3); the inclusion of [REDACTED] (which has overstated the total number of transactions in Item 3); and the application of an

¹ Sachdev Affidavit at [6] and Tab 2 of Confidential Exhibit SS-1.

² Sachdev Affidavit at [7] and Tab 3 of Confidential Exhibit SS-1.

incorrect methodology for calculating total quantity of units sold where a product was sold by weight rather than unit (resulting in inaccuracies in the total number of products sold and average number of items per transaction in Item 3).³

- 4 The information in Item 3 is not expressly referenced in the SOR, although average transaction size is relevant to the ACCC's categorisation of supermarkets into "full-line" or "convenience-based" in SOR at [2.32] - [2.33]. Coles' SOFIC at [10] and [15] refers to the average basket size of competing supermarkets, including Spudshed and other independent supermarkets (which range from \$[REDACTED] to \$[REDACTED]), in the context of its contentions concerning supermarket competition in Kalgoorlie. Item 3 contains data from which may be derived the comparable average transaction (or basket size) at Coles Kalgoorlie in FY25 (Total Revenue / Total number of transactions). The original response would suggest an average transaction value of approximately \$[REDACTED] in FY25, whereas the correct figure is approximately \$[REDACTED]. In the absence of Coles' proposed correction, it will not be in the position to make complete submissions, and the Tribunal will not have consistent⁴ and accurate information from which it may make findings about this dimension of comparison of supermarkets in Kalgoorlie.
- 5 The information in Item 4 is relied upon by the ACCC in the SOR as a data source for the revenues of Coles Kalgoorlie's top 100 products (and its related matching exercise for products supplied by competing supermarkets): see Figure 4 and fn 155 (p 34). This analysis is, in turn, relied upon by the ACCC at [6.45] and [7.24] of the SOR. Coles does not presently anticipate submitting that corrections to the information in Item 4 bear materially on matters in dispute, which concern ultimately the extent to which O'Connor Fresh IGA is a differentiated competitor and the significance of that to competitive dynamics in the factual and counterfactual, and where Coles will also make different submissions about the cogency of the ACCC's SKU analysis that do not depend on the precise inclusions in the Coles Kalgoorlie top 2,000 or 100 products.
- 6 Pursuant to s 100R(2) of the CCA the Tribunal may have regard to Items 3 and 4 as *"information furnished ... to the Commission in connection with the making of the determination to which the review relates."* To ensure the Tribunal has available to it correct and accurate information, it may seek, and have regard to, the Sachdev Affidavit under s 100T(g) of the CCA on the basis that it contains information which the

³ Sachdev Affidavit at [9].

⁴ The original response is inconsistent with other materials available to the Tribunal - e.g. weekly reporting data (01068.001.004.0002, Documentary Index) and the Coles Somerville full MA (COL.0010.0001.0002, Documentary Index). Such materials are consistent with the corrected average transaction size.

Tribunal “*believes reasonable and appropriate for the sole purpose of clarifying the information, documents or evidence referred to in subsection 100R(2)*”. The Sachdev Affidavit exhibits corrected responses to Items 3 and 4 (at Tabs 4 and 5 of Confidential Exhibit SS-1) and thereby seeks to clarify information provided by Coles to the ACCC.

Brendan Lim

Jacqueline Ibrahim

Counsel for the Applicant

29 September 2026